

The Orissa Court-fees (Surcharge Amendment) Act, 1947

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State of Odisha - Act

The Orissa Court-fees (Surcharge Amendment) Act, 1947

ODISHA

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The Orissa Court-fees (Surcharge Amendment) Act, 1947

Act 20 of 1947

Published on 22 April 1948

Commenced on 22 April 1948

[This is the version of this document from 22 April 1948.]

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The Orissa Court-fees (Surcharge Amendment) Act, 1947

Orissa Act

No. 20 of 1947

Published vide Orissa Gazette Extraordinary 12.7.1947.

An Act to amend the Court-fees Act, 1870 in its application to the Province of Orissa

Whereas the Orissa Court-fees (Surcharge Amendment) Act, 1945, an Act to enhance the fees payable under the Court-fees Act, 1870, in its application to the Province of Orissa, will expire on the 22nd April, 1948;

And whereas it is expedient to re-enact the provisions of the said Act;

It is hereby enacted as follows :

1.

Short title, extent and commencement.

(1)

This Act may be called the Orissa Court-fees (Surcharge Amendment) Act, 1947.

(2)

It [extends]

[The Act extended to all the partially excluded areas, see Orissa Gazette Part-3 of 1947.]

to the whole of the Province of Orissa.

(3)

It shall come into force at once.

2.

Enhancement of court-fees.

- Notwithstanding anything contained in the Court-fees Act, 1870 (hereinafter called the principal Act), in its application to Orissa all fees leviable under the principal Act shall be increased by a surcharge at the rates specified in the Schedule annexed hereto.

3.

Application of the principal Act.

- The provisions of the principal Act, save in so far as they are inconsistent with anything herein contained, shall apply to this Act,

4.

Repeal of Orissa Act IV of 1945.

- The Orissa Court-fees (Surcharge Amendment) Act, 1945, is hereby repealed.

The Schedule

[See Section 2]

Rates of surcharge on fees leviable under the Court-fees Act, 1870 in its -application to Orissa

Rates of Surcharge

1.

On every whole rupee

Four annas per rupee

2.

(a) On a fraction of a rupee up to and including four annas

One anna

(b) On a fraction exceeding four annas but not exceeding

eight annas

Two annas

(c) On a fraction exceeding eight annas but not exceeding

twelve annas

Three annas

(d) On a fraction exceeding twelve annas but less than

sixteen annas

Four annas

Illustration - On a Court-fee of Rs. 20-6-0 the surcharge will be $(20 \times 4) + 2$ annas i.e., Rs. 5-2-0 and the total Court-fee chargeable will be Rs. 25-8-0.

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